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ENVS 125C

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ENVS 125C Legal Analysis: Appellant Representation - GCC, EDC, and the Surfrider Foundation

Project Proposal

Details: Single-family residential and accessory structure construction on Naples bluffs, and habitat restoration of locales on-site previously subject to unpermitted disking

DMF Fund Seaside Residential Development & Habitat Restoration Project Description

Location	361 Napoli Street in Naples Townsite Area – Naples Townsite lots 65-68
Parcel Numbers	Parcels 079-160: -021, -038, -045, -046; voluntary merger to single lot
Lot Zoning	Rural (AG-II) Zone District
Site Acreage	14.15 acres
Seaside Residence Specifications	Single-family residence (6,199 sq ft total) Attached: Junior Accessory Dwelling Unit (400 sq ft) and garage (1,000 sq ft) Detached: Accessory Dwelling Unit (800 sq ft), pool, spa, and barn (2,000 sq ft)
Public and Private Services	Private: Well access, on-site wastewater treatment, on-site septic system, propane delivery via truck Public: Conditional public access OTDs with room for future expansion, bumblebee protection design measure incorporation
Habitat Restoration Specifications	Restoration of 0.49 acres of disked native grassland and disked 0.14 acres of wetland
Regulatory Documents	California Coastal Act, Coastal Land Use Plan, and Gaviota Coastal Plan

Regulatory Setting

Key Laws and Regulations

California Environmental Quality Act (CEQA)	Coastal Act
- Section 15126.2(e) - Section 15130 - Section 15153 - Section 15162 - Section 153355	- Section 30007.5 - Section 30231 - Section 30240 - Section 30241 - Section 30242 - Section 30250 - Section 30251
Coastal Land Use Plan (CLUP)	Gaviota Coastal Plan (GCP)

- Policy 2-6 - Policy 2-9 - Policy 2-13 - Policy 2-27 - Policy 2-28 - Policy 2-29 - Policy 2-30 - Policy 3-14 - Policy 4-9 - Policy 4-11 - Policy 8-2 - Policy 9-1 - Policy 9-26	- Policy NS-2 - Development Standard NS-4 - Policy NS-4 - Policy NS-11 - Policy AC-1.A - Policy AG-1.B - Policy AG-1.D - Policy LU-3 - Policy LU-10 - Policy VIS-1a - Policy VIS-5 - Policy VIS-13 - Policy VIS-15 - Policy VIS-16
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Coastal Act Policy Issues

California Coastal Act Section 30242 – Land Resources: Agricultural Use

The majority of zoned land in Naples is under agricultural use. Subsequently, the agriculture subsection of the staff reports comprehensive plan should reflect this fact and include an extensive analysis of agricultural land policies, far more than the present three GCP Agricultural policies alone. Despite that, the agricultural prevalence in this staff report is lacking – with only explorations of GCP agricultural policies and a brief mention of Coastal Act Section 30241 throughout the entire report, there seems to be a failure to thoroughly examine and consider this project's impacts on agricultural land. This policy analysis failure becomes even more concerning when coupled with the fact that the project location – alongside the majority of the Naples locale – is zoned and intended for agricultural use, indicating a lack of thoroughness and proper care throughout the staff review; has this project been evaluated with the proper diligence and scrutiny demanded of it?

According to Coastal Act Section 30241, “the maximum amount of *prime* agricultural land shall be maintained in agricultural production to assure the protection of the areas’ agricultural economy”. As the only mentioned Coastal Act agricultural policy in the staff report, Sect. 30241 is being used to indicate project compliance, as “the project site does not contain *prime* agricultural land”, and is subsequently aligned with the California Coastal Act. More specifically, this claim is being made – as this locale is not *prime* agricultural land, it does not *need* to be maintained in agricultural production. While this is true: yes, the project is not situated on prime agricultural land, and it subsequently does not need to be considered when looking at the maintenance amount of *prime* agricultural land use, it fails to discuss the fact that *prime* land alone is not the only consideration when it comes to determining the feasibility of non-agricultural land-use on agriculturally designated land.

While not mentioned in the SR, following Section 30241 of the Coastal Act, Section 30242 states “all other lands suitable for agricultural use shall not be converted to nonagricultural uses unless (1) continued or renewed agricultural use is not feasible, or (2) such conversion would preserve prime agricultural land or concentrate development consistent with Section 30250.” While the Staff Report looks at prime agricultural land use alone, that is clearly not the only consideration when it comes to agricultural land conversion. Yes, Section 30241 is consistent with this project; however, Section 30241 is not, replacing the negation of responsibility that is claimed in the SR. Additionally, while it is true that Section 30241 has allowances of case-dependent conversions, this project does not align with the special scenarios required for nonagricultural conversion.

Section 30242 allows for nonagricultural conversion if the land is no longer feasible for “continued or renewed agricultural use”, or if this conversion would help “preserve prime agricultural land or concentrate development consistent with Section 30250”. However, none of these scenarios apply to this project. The land that this project is situated on is still feasible for agricultural use – there are not only no indications within the SR that it is unfeasible, but the project itself has allotted for low-intensity agricultural use via the maintenance of “the existing AG-II zoning”, allowing a limited 3.56-acre area for agricultural use, e.g., animal keeping, barn building (but only for animal keeping fencing/pasturing), agricultural irrigation, etc.. Clearly, even within the residential aspect project, there is no claim for lack of agricultural feasibility, rendering that potential claim invalid. Section 30242 also allows for nonagricultural conversion if this conversion would help “preserve prime agricultural land or concentrate development consistent with section 30250”. As stated in the brief discussion of Section 30241, this project will have little to no impact on prime agricultural land, and will subsequently not take away from *prime* agricultural land use if it is continued to be used agriculturally. The second part of Section 30242 states that such conversion may also be allowed when said conversion will “concentrate development consistent with Section 30250”. However, does this proposed project do so? According to CLUP policy 2-13, “Naples is within a designated rural area and is remote from urban services.” Additionally, as discussed in the SR, to gain access to the proposed project parcel, a private driveway crossing multiple adjacent land parcels is required. These two factors indicate a lack of adjacency/continuity to other urban development; coupled with the previously discussed lack of agricultural infeasibility, according to Section 30242 of the Coastal Act, the allowance of non-agricultural residential usage on this land is invalid, and should subsequently be separated from the project and denied.

California Coastal Act Section 30250 – Land Resources: Contiguous Development

Coastal Act Section 30250 states that “new residential, commercial, or industrial development, except as otherwise provided in this division, shall be located within, contiguous with, or in close proximity to, existing developed areas able to accommodate it or, where such areas are not able to

accommodate it, in other areas with adequate public services and where it will not have significant adverse effects, either individually or cumulatively, on coastal resources”. According to the first part of Section 30250, this new residential development must be contiguous/in close proximity to existing developed areas that are able to accommodate its resource demand. As discussed prior, this project does not express a clear indication of continuity/close proximity to existing developed areas, with CLUP policy 2-13 stating that “Naples is [...] remote from urban services” and the requirement of a private driveway cutting across multiple other land parcels, indicating a lack of contiguity/close proximity to other urban residential locales. Additionally, the need for resources such as propane to be continuously brought into the project locale to sustain residential living indicates a lack of resource accommodation from existing developed areas; these two factors combined render this project invalid for the first non-agricultural use conversion reasons allowed in Section 30250.

The second part of Section 30250 states that this new residential development must not have “significant adverse effects, either individually or cumulatively, on coastal resources”. But what is a coastal resource? While not explicitly stated, Section 30001 of the Coastal Act states that “the permanent protection of the state’s natural and scenic resources is a paramount concern to present and future residents of the state and nation”, immediately followed by the statement “to promote [...] other ocean resources [...] it is necessary to protect the ecological balance of the coastal zone and prevent its deterioration and destruction”. Clearly, under the Coastal Act, resources fall under a broad umbrella; generally, to promote and protect the state’s natural and scenic resources, it is necessary to protect the coastal zone ecological balance and prevent any deterioration and destruction threatening it.

Maintaining ecological balance and preventing deterioration/destruction of natural habitats is fundamental to protecting California coastal resources. However, this project is actively inhibiting that goal, and subsequently has a significant adverse effect on coastal resources, specifically interfering with protected Environmentally Sensitive Habitat Areas (ESHA), which are outlined as protected under the California Coastal Act, GCP, etc. While the applicant claims within the SR that GCP Policy NS-4 only *potentially* considers white-tailed kite foraging areas as ESHA’s, on a case-by-case basis, reevaluation of GCP Policy NS-4 indicates otherwise: “although a site-specific analysis will form the *basis* for ESH determinations, the following types of habitat are considered rare or especially valuable, and therefore ESH unless a particular habitat area is so small and isolated or degraded that it is no longer sustainable”. These lines indicate that while *some* locales require a site-specific analysis, the following habitats (which include white-tailed kite foraging sites) have already been determined to be rare/especially valuable, and are inherently ESH’s unless otherwise determined – the inverse of general ESH determinations. While the applicant is correct in saying that consideration of habitat size, isolation, and degradation all play a part in

ESH determination, according to the statement above, those factors only play a part in determining the *removal* of ESH status for specific pre-determined sites, rather than the instatement of ESH status.

Additionally, the applicant claims that the project site is just one of many suitable white-tailed kite foraging locales, and that the project site is not known to “support nesting kites on a consistent basis and do[es] not contain documented roosting sites.” While that may be true, those points hold no grounds in removing ESH status; the designation for an ESH does not rely on roosting and nesting sites alone – “raptor nesting, roosting, and breeding areas **and** white-tailed kite foraging areas” – nor on the viability of other foraging locales. Subsequently, this project site still remains an ESH; allowing continued construction will lead to deterioration of an ESHA, which will have an adverse effect on California resources – this project is invalid for non-agricultural conversion according to Section 30250 of the California Coastal Act, and should not be allowed to continue.

Precedent Summary

Approved or denied, this project will set a future precedent for both Naples land use and broader California agricultural land usage. Naples is a locale that consists primarily of agricultural zoning – allowing/denying the construction of this project will set a precedent for future agricultural land conversions. While this specific project may be bordering on an exemption, its approval would create a baseline for future edge cases, which could devolve into a slippery slope. Yes, historically, this land has not been used for large agricultural means, focusing primarily on grazing. However, allowing it to be converted for non-agricultural use leads to future precedent of more conversion allowances, fragmentation, and ultimately impacts on major agricultural processes. Approving this project sets a standard of encroachment, which can be exploited time and again, reducing the viability and protections that land-use zoning provides. Similarly, regarding resource conservation and habitat restoration/conservation, again, it is not entirely clear if this project will impact protected locales (like an ESH). However, even if it has no effect initially, it is an edge case, one that can be used to allow increasing levels of encroachment and potential damage into protected locales, rendering protected zones like ESH’s less effective over time, and potentially leading to cumulative effects of long-term damage.

As discussed and highlighted in CEQA, cumulative impacts are just as significant as individual impacts – while this one project alone may not create an initial detriment, it allows for future similar projects: the combined individual impacts of these projects could lead to a cumulative negative impact, harming the larger scope of California ecosystems, resources, and general environment. Overall, this project – approved or not – will set a precedent, either one of over-exhaustion of our resources, ecosystems, or environments, or one that facilitates and protects our California locales and ecology, a worrisome consideration when regarding the ultimate outcome of this case.